

BILL NO. 67 OF 1999

A Bill further to amend the Constitution of India.

BE it enacted by Parliament in the Fiftieth Year of the Republic of India as follows:—

Short title and
commence-
ment.

1. (1) This Act may be called the Constitution (Eighty-fourth Amendment) Act, 1999.

(2) It shall come into force on the 25th day of January, 2000.

Amendment of
article 334.

2. In article 334 of the Constitution, for the words “fifty years”, the words “sixty years” shall be substituted.

STATEMENT OF OBJECTS AND REASONS

Article 334 of the Constitution lays down that the provisions of the Constitution relating to the reservation of seats for the Scheduled Castes and the Scheduled Tribes and the representation of the Anglo-Indian community by nomination in the Lok Sabha and in the Legislative Assemblies of the States shall cease to have effect on the expiration of a period of fifty years from the commencement of the Constitution. Although the Scheduled Castes and the Scheduled Tribes have made considerable progress in the last fifty years, the reasons which weighed with the Constituent Assembly in making provisions with regard to the aforesaid reservation of seats and nomination of members, have not ceased to exist. It is, therefore, proposed to continue the reservation for the Scheduled Castes and the Scheduled Tribes and the representation of the Anglo-Indians by nomination for a further period of ten years.

2. The Bill seeks to achieve the above object.

NEW DELHI;

RAM JETHMALANI.

The 21st October, 1999.

FINANCIAL MEMORANDUM

Clause 2 of the Bill seeks to amend article 334 of the Constitution to provide for the continuance of the representation of the Anglo-Indian community in the Lok Sabha and in the Legislative Assemblies of the States by nomination for a further period of ten years. It is estimated that the recurring expenditure on the salaries and allowances and other concessions of the two representatives of the Anglo-Indian community in the Lok Sabha under article 331 will be of the order of rupees eight lakhs per annum.

2. There will be no non-recurring expenditure.